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June 5, 2026

Haverhill City Council
Haverhill City Hall
4 Summer Street
Haverhill, MA 01830

Application for Special Permit 512 Washington Street

Project Summary & Intent

The owner of the subject property, and the applicant for the requested Special Permit is Essex County Habitat for Humanity (the "Applicant"). They recently closed on the purchase of 512 Washington Street (the "Property") after years of talks, negotiations and planning with the previous owners, Keith F. and Diane C. Boucher. Mr. & Mrs. Boucher purchase the property in 2012 from the mortgage lender after it had been foreclosed upon.

Essex County Habitat for Humanity is a nonprofit organization that helps families build and improve places to call home. They believe affordable housing plays a critical role in strong and stable communities and that everyone deserves a decent place to live. Unfortunately, 1 in 4 families pay 50% or more of their income on housing and therefore cannot contribute to the community or build a future. With affordable homeownership, families are able to achieve the strength, stability, and independence they need to build a better life for themselves and for their families.

They have built, and continue to build, in 34 cities and towns across all of Essex County. The current projects they are working on are:

- 10 residential units located on Asbury Street in Hamilton, MA consisting of 5 duplexes.
- 2 residential units located on Curtis Street right here in Haverhill, MA
- Conversion of a vacant office building into 3 residential units in Gloucester, MA

I strongly urge you to check out their website for additional information, success stories and volunteer opportunities.

The intent of the Applicant before you this evening is to continue their mission by renovating the existing house on the Property and dividing it into three (3) affordable housing units. The existing dilapidated garage on the Property will be torn down. The Applicant then proposes to build a duplex on either side of the existing house, adding an additional four (4)

affordable housing units to the Property. Once complete, the entire Property consisting of a total of seven (7) residential units will be converted to condominiums. There will be a provision within the condominium documents, as well as restrictions in each of the deeds, stating that every unit shall perpetually be defined as affordable housing. Each unit will then be sold to qualified low-income home buyers.

Applicable Zoning Regulations

The Property is situated in a High-Density Residential Zoning District (RH). Per the Haverhill Zoning Code (the "Code") Chapter 255, what the Applicant is proposing is defined as "dwelling, multifamily." §8.2 of the Code specifically addresses the allowance of multifamily dwellings in the RH district. It allows multifamily dwellings by special permit issued by the City Council, provided that all conditions outlined in §8.2.2 are met. Please see the **Zoning Opinion** letter submitted with the full application package for analysis of §8.2.2.

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Use as a multifamily dwelling will not cause substantial detriment to the public good or impair the purposes and intent of the Zoning By-laws. This entire area of the City is comprised of multifamily dwellings. Each of the duplex units will have 1 garage parking space and 1 driveway parking space. Each unit in the converted structure would also have assigned off street parking. Per the Zoning Code Table of Use and Parking Regulations and §6.1.3 Table 3, a total of 13 off street parking spaces are required, and are being provided. No on-street parking would be necessary.

Use as a multifamily dwelling will also not be out of character for the neighborhood. The Property before you is surrounded almost entirely by multifamily residential units ranging from as few as two (2) units to as many as eight (8) units. Within a very small radius there are properties that have four to eight unit structures (See 97 Beach St., 77 Beach St., 70 Beach St.). The proposal by the applicant would fit perfectly for the character of the neighborhood.

A grant of this Special Permit would not constitute a special privilege for the Applicant. The Applicant is not proposing this project as a way to make money. The Applicant is a non-profit organization that plans to sell each unit to qualified low-income buyers. The costs of construction in today's economy will far exceed the end sale price. The proposed use is completely consistent with the surrounding properties which are all multifamily residential units.

The requested Special Permit to allow use as multifamily dwelling units is reasonable given the layout of the neighborhood, the size of the dwellings, the available parking and the upgrades that will take place. In addition, the applicant's proposed use will be of great benefit to City of Haverhill and its residents by making seven (7) new affordable housing units available in a neighborhood within walking distance of many services and public transportation, and which is undergoing a revitalization.

Additional Considerations

Washington Street is one of 8 sections of Haverhill identified as Areas for Targeted Growth in Vision 2035 and labeled as a "Village Center." Vision 2035 recommends a change in the zoning requirements for side setback, which is one of the variances that was requested and approved by the Board of Appeals. If those changes were in place today, the Applicant would only needed to apply for one (1) **8 INCH variance** to move forward with this project. Otherwise, it would be allowed as of right. Approval of the Special Permit request presented today would be keeping directly in line with what Haverhill wants to look like 10 years from now.

There is a housing crisis plaguing our area. Haverhill has made great attempts to tackle this problem head-on by allowing for the large developments currently under construction. However, there is a still need for housing for those considered low-income. By granting the requested Special Permit, which will have a minimal impact on the immediate neighborhood, the Council can make great strides in addressing the housing crises without "overdeveloping" and straining public resources.

The purpose of a high-density residential zone is to maximize the number of dwelling units in a small area. The neighborhood of the proposed project is in the beginning stages of a revitalization. This neighborhood is on its way to becoming a really great location to live in the City. The proposal before you today fits squarely within the definition of an urban planning term known as "infill housing." Infill housing is the rededication of land in an urban environment to new construction. It is widely considered an economical use of existing infrastructure and a remedy for urban sprawl, especially as part of a smart growth master plan. Haverhill's Vision 2035 master plan places a huge emphasis on smart growth.

For all the reasons cited above, we respectfully request that, pursuant to (1) 255 Attachment 1, Appendix A, Table 1: Table of Use and Parking Regulations, (2) §255-8.2.2 of the Haverhill Zoning Code, and (3) M.G.L. c 40A, §9 the City Council grant the Special Permit requested for the property at 512 Washington Street.

Very truly yours,

DOWNEY LAW GROUP LLC



Caitlin M. Masys, Esq.